IN THE ISLAMABAD HIGH COURT, ISLAMABAD
Present:
* Hon'ble Mr. Justice Shahid Waheed
* Hon'ble Mr. Justice Musarrat Hilali

Crl. Appeal No. 444/2016
Citation: PLD 2016 Lah 95
Matter ID: MAT-TAXA-2016-054

BETWEEN:
Sultana Bibi ... Appellant / Petitioner
VERSUS
Securities & Exchange Commission of Pakistan ... Respondent

LEGAL TOPIC: Taxation - Unexplained Income & Assessment
STATUTES CITED: Income Tax Ordinance 2001, S. 111, S. 122, Constitution Art 199

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 444/2016, directed against the final judgment rend ered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Income Tax Ordinance 2001, S. 111 were disregarded, thereby causing grave miscarriage of just ice. On the contrary, learned counsel for the respondent defended the impugned judgment, assert ing that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
For the reasons recorded above, this Court holds that the concurrent findings arrived at by the learned High Court do not call for any interference. The appellant has failed to demonstrate a ny illegality or procedural irregularity in terms of Income Tax Ordinance 2001, S. 111. Appeal stands dismissed with no order as to costs.

Decided on: 23 October 2016.